

without the previous sanction of the Court (*a*); but where a suit has been instituted for the execution of the trust, *that*

(*a*) *Earl of Bath v. Earl of Bradford*, 2 Ves. 590, *per Lord Hardwicke*.

*Suydam*, 6 Wall. 723; *Stall v. Cincinnati*, 16 Ohio St. 169; *Rankin v. Rankin*, 36 Ill. 293; instructions to make a division are insufficient; *Mapes v. Tyler*, 43 Barb. 421; *Winston v. Jones*, 6 Ala. 550; *Moore v. Lockett*, 2 Bibb. 69. The successor of a trustee may exercise the power of sale; *Buchanan v. Hart*, 31 Tex. 647. An authority to sell does not include the right to mortgage; *Paine v. Barnes*, 100 Mass. 470; *Wood v. Goodridge*, 6 Cush. 117; *Ferry v. Laible*, 31 N. J. Eq. 567; *Stokes v. Payne*, 58 Miss. 614; *Huntt v. Townshend*, 31 Md. 338; *Tyson v. Latrobe*, 42 Md. 325; but see *Goehring's App.* 81½ Pa. St. 284; *Zane v. Kennedy*, 73 Pa. St. 183; but if trustee and cestui que trust are parties to it, they cannot invalidate it; *Ryder v. Sisson*, 7 R. I. 341. Where a trust is charged with debts, the trustee may have an option to sell or mortgage, the latter being favored; *Britton v. Lewis*, 8 Rich. Eq. 271; *Duval's App.* 38 Pa. St. 112; and a mortgage may be regarded as a conditional sale; *Leavitt v. Pell*, 25 N. Y. 474; a partial sale or a mortgage does not exhaust the power; *Asay v. Hoover*, 5 Barr, 21; if the court can provide for raising money it may decree a mortgage or a sale; *Williamson v. Field*, 2 Sandf. Ch. 533.

A power to sell does not include an exchange; *King v. Whiton*, 15 Wis. 684; *School v. McCully*, 11 Rich. 424; nor a partition; *Borel v. Rollins*, 30 Cal. 408; *Bradshaw v. Fane*, 3 Drew, 536; but power to "sell and exchange" authorizes partition; *Phelps v. Harris*, 51 Miss. 789; trustees may have power to have a partition, although they personally cannot make it; *Nagle's Est.* 52 Pa. St. 154; nor does a power include the right to convey to a cestui trust or a legatee; *Goode v. Comfort*, 39 Mo. 313; *Russell v. Russell*, 36 N. Y. 581; or to lease; *Hubbard v. Elmer*, 7 Wend. 446; but see *Treat v. Peck*, 5 Conn. 280; unless strong reasons could be shown by the trustees; *Blake v. Sanderson*, 1 Gray, 333; *Hedges v. Riker*, 5 Johns. Ch. 163; where the heirs hold until sale, they have power to reap the profits; *Seymour v. Bull*, 3 Day, 389. The trustees in selling must act for the best interest of the cestuis que trust; *Gould v. Chapple*, 42 Md. 466; *Chesley v. Chesley*, 49 Mo. 540.

Trustees must give sufficient notice of the sale to bring about all reasonable competition, but no particular form of advertising is required; *Harper v. Hayes*, 2 Gif. 216; *Reeside v. Peter*, 33 Md. 120; *Stephenson v. January*, 49 Mo. 465; *Newman v. Jackson*, 12 Wheat. 570; *Cushman v. Stone*, 69 Ill. 516; if notice must be given at a particular place, notice elsewhere is void; *Sears v. Livermore*, 17 Ia. 297; if in discretion of trustee, advertising may be dispensed with; *M'Dermut v. Lorillard*, 1 Edw. Ch. 273; any statutory requirements must be followed; *Campbell v. Tagge*, 30 Ia. 305; *Stine v. Wilkson*, 10 Mo. 75. Mere inadequacy of price is not sufficient cause for setting aside a sale; *Booker v. Anderson*, 35 Ill. 66; *Boehlert v. McBride*, 48 Mo. 505; *Carter v. Abshire*, 48 Mo. 300; *Waterman v. Spaulding*, 51 Ill. 425; *Clark v. Freedman's Savings Co.* 100 U. S. 149; see also *Carpenter v. Robinson*, 1 Holmes, 67; *Horsey v. Hough*, 38 Md. 130; *McNeil v. Gates*, 41 Ark. 264; *Morse v. Hill*, 136 Mass. 60; if there are two equally advantageous offers, the trustee may choose between them; *Selby v. Bowie*, 4 Gif. 300.

A trustee who takes no part in the sale is nevertheless responsible, for he cannot delegate his power; *Oliver v. Court*, 8 Price, 166; *Berger v. Duff*, 4